

Secretary of State
P.O. Box 13697
Austin, TX 78711-3697
FAX: 512/463-5709

Filing Fee: \$300



**Certificate of Formation
Limited Liability Company**

**Filed in the Office of the
Secretary of State of Texas
Filing #: 803847214 12/02/2020
Document #: 1010675800002
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Article 1 - Entity Name and Type

The filing entity being formed is a limited liability company. The name of the entity is:

HAVENGATE DEVELOPMENT FUND GP LLC

Article 2 – Registered Agent and Registered Office

☒ A. The initial registered agent is an organization (cannot be company named above) by the name of:

Law Offices of Paulo Calixto PLLC

OR

☐ B. The initial registered agent is an individual resident of the state whose name is set forth below:

C. The business address of the registered agent and the registered office address is:

Street Address:

13601 PRESTON RD STE 320-E

None DALLAS TX 75240

Consent of Registered Agent

☐ A. A copy of the consent of registered agent is attached.

OR

☒ B. The consent of the registered agent is maintained by the entity.

Article 3 - Governing Authority

☒ A. The limited liability company is to be managed by managers.

OR

☐ B. The limited liability company will not have managers. Management of the company is reserved to the members.

The names and addresses of the governing persons are set forth below:

Manager 1: **ALTIERIS C SANTANA**

Title: **Manager**

Address: **13601 Preston Rd Ste 320-E None DALLAS TX, USA 75240-2422**

Manager 2: **PAULO S CALIXTO**

Title: **Manager**

Address: **13601 Preston Rd Ste 320-E None DALLAS TX, USA 75240-2422**

Article 4 - Purpose

The purpose for which the company is organized is for the transaction of any and all lawful business for which limited liability companies may be organized under the Texas Business Organizations Code.

Supplemental Provisions / Information

[The attached addendum, if any, is incorporated herein by reference.]

Form 509.pdf

Organizer

The name and address of the organizer are set forth below.

Paul S. Calixto, Esq. **13601 Preston Rd Suite 320E Dallas TX 75240**

Effectiveness of Filing

☒ A. This document becomes effective when the document is filed by the secretary of state.

OR

☐ B. This document becomes effective at a later date, which is not more than ninety (90) days from the date of its signing. The delayed effective date is:

Execution

The undersigned affirms that the person designated as registered agent has consented to the appointment. The undersigned signs this document subject to the penalties imposed by law for the submission of a materially false or fraudulent instrument and certifies under penalty of perjury that the undersigned is authorized under the provisions of law governing the entity to execute the filing instrument.

Paul S Calixto, Esq.

Signature of Organizer

FILING OFFICE COPY

Form 509 (Revised 05/19) Submit with relevant filing instrument. Filing Fee: None	 Consent to Use of Similar Name	
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(1) HAVENGATE DEVELOPMENT FUND LP (FILE NUMBER# 803341110)

Name and file number of the entity or individual who holds the existing name on file with the secretary of state

consents to the use of

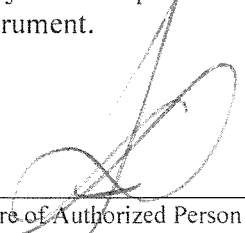
(2) HAVENGATE DEVELOPMENT FUND GP LLC

Proposed name

as the name of a filing entity or foreign filing entity in Texas for the purpose of submitting a filing instrument to the secretary of state.

(3) The undersigned certifies to being authorized by the holder of the existing name to give this consent. The undersigned signs this document subject to the penalties imposed by law for the submission of a materially false or fraudulent instrument.

Date: Dec 02, 2020



Signature of Authorized Person

Paul Calixto, Manager

Name of Authorized Person (type or print)

Manager

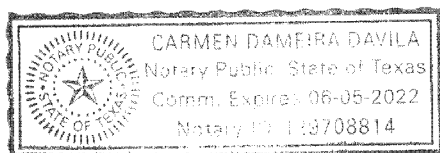
Title of Authorized Person, if any (type or print)

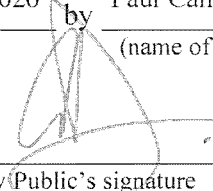
State of TEXAS

County of DALLAS

This instrument was acknowledged before me on 02/12/2020 by Paul Calixto.
(date) (name of authorized person)

(Seal)





Notary Public's signature

General Information
(Consent to Use of Similar Name)

The attached form is drafted to meet minimal statutory filing requirements pursuant to the relevant code provisions. *This form and the information provided are not substitutes for the advice and services of an attorney.*

Commentary

A proposed name for an entity can be similar to an existing name only if the holder of the existing name provides notarized consent. Tex. Bus. Orgs. Code § 5.053. Existing names include the names of active Texas filing entities, the names and fictitious names of active registered foreign filing entities, reserved names, and registered names.

This form can be used by the holder of an existing name to consent to the use of a similar name as the name of a filing entity or foreign filing entity for the purpose of submitting a filing instrument to the secretary of state. Use of this form is permissive. Consent can be given in any written format, but the signature of the person providing consent must be notarized. A proposed name cannot be “the same as” an existing name, even if the holder of the existing name consents.

The holder of an existing name is not required to give consent. Consent does not authorize the use of a name in Texas in violation of a right of another under the Trademark Act of 1946, as amended (15 U.S.C. Section 1051 et seq.); Chapter 16 or 71, Business & Commerce Code; or common law. The secretary of state does not enforce these rights. Once the secretary of state files an instrument based on written consent to the use of a similar name, consent cannot be withdrawn. The secretary of state cannot enforce any private agreements or conditions the parties may have entered into regarding consent to use of the similar name. *Questions about consent should be addressed to a private attorney.*

Texas Administrative Code, title 1, part 4, chapter 79, subchapter C sets out the rules for determining whether names are the same, distinguishable on the record, or available with consent. These rules may be viewed at www.sos.state.tx.us/tac/index.shtml.

Instructions for Form

- Item 1: Enter the name of the entity or individual who holds the existing name.
- Item 2: Enter the proposed name.
- Execution: The form must be signed by the person who holds the existing name; if the existing name is held by an entity, an individual who is authorized to act on behalf of the entity must sign the form. The signed consent must be notarized.

A person commits an offense under section 4.008 of the BOC if the person signs or directs the filing of a filing instrument the person knows is materially false with the intent that the instrument be delivered to the secretary of state for filing. The offense is a Class A misdemeanor unless the person's intent is to harm or defraud another, in which case the offense is a state jail felony.

- Submission: Submit the form with the relevant filing instrument. *Do not submit separately from the relevant filing instrument.* If written consent is not submitted with the relevant filing instrument, the secretary of state will not be able to take the consent into consideration.

Revised 05/19